

DATA PROCESSING AGREEMENT

Formal Signed Version (Enterprise / On-Request)

Pursuant to the Digital Personal Data Protection Act, 2023 (India) | Version 1.0

■ **Note:** RemindMe India's standard B2B Data Processing Agreement is auto-accepted upon subscription via our Terms of Service (<https://remindmeindia.site/dpa>). This formal signed version is provided to Enterprise clients or businesses that require a countersigned PDF for their compliance records.

Effective Date: _____ (DD/MM/YYYY)

Agreement Reference No: RMI-DPA-_____

1. PARTIES TO THIS AGREEMENT

1.1 Data Fiduciary (Controller) — "Business"

Legal Business Name: _____

Business Type: ■ Gym ■ Clinic ■ Coaching ■ Salon ■ Other: _____

Owner / Authorised Signatory: _____

GSTIN (if applicable): _____

Registered Address: _____

City, State, PIN: _____

Owner WhatsApp Number: +91 _____

Owner Email: _____

1.2 Data Processor — "Service Provider"

Legal Name: RemindMe India (Sole Proprietorship)

MSME Registration: Udyam Registered, NIC Code 62011

Owner & Grievance Officer: Ayush Malviya

Registered Address: Room No. S94, JC Bose Hostel, SGSITS College,
23 Park Road, Indore - 452003, Madhya Pradesh, India

Legal / Grievance Email: hello.remindmeindia@gmail.com

Owner WhatsApp (Legal Notices): +91 74705 78178

Service WhatsApp (Bot): +91 62699 15175

Website: <https://remindmeindia.site>

2. RECITALS

WHEREAS the Business operates a service-based enterprise that maintains a customer/member database;

WHEREAS the Service Provider operates an automated WhatsApp-based reminder service for businesses;

WHEREAS the Business desires to use the Service Provider's platform to send automated reminders to its members;

WHEREAS both parties wish to comply with the Digital Personal Data Protection Act, 2023 ("DPDP Act"), and other applicable Indian laws regarding the processing of personal data;

NOW THEREFORE, the parties agree as follows:

3. SUBJECT MATTER AND DURATION

3.1 Subject Matter: WhatsApp-based automated reminder service for the Business's members, including subscription renewal reminders, appointment notifications, and broadcast messages.

3.2 Duration: This Agreement is effective from the Effective Date and remains in force during the term of the Business's active subscription to the Service. It survives termination for purposes related to data deletion, audit cooperation, and confidentiality.

4. NATURE AND PURPOSE OF PROCESSING

Aspect	Details
Nature	Storage, processing, and transmission of member personal data via WhatsApp
Purpose	Automated reminders (renewal, appointment, broadcast) on behalf of Business
Categories of Data Subjects	Members/customers of the Business
Categories of Personal Data	Name, WhatsApp number, subscription expiry date, opt-in status
Sensitive Personal Data	NONE collected or processed
Frequency	Continuous, automated processing during subscription period

5. OBLIGATIONS OF THE BUSINESS (DATA FIDUCIARY)

The Business shall:

- (a) Obtain valid, informed, specific, and explicit consent from each member before adding their data to the Service.
- (b) Maintain proof of consent (written, digital, or recorded) for at least 3 years.
- (c) Provide the Service Provider with accurate, up-to-date member data.
- (d) Honor member rights under the DPDP Act, including access, correction, erasure, and withdrawal of consent.
- (e) Be solely responsible for the lawfulness of the data collected from members.
- (f) Promptly notify the Service Provider of any member's opt-out, deletion, or correction request.
- (g) Not upload sensitive personal data (health records, financial details beyond subscription fees, biometric data, etc.).
- (h) Comply with all applicable Indian laws including TRAI commercial communication regulations.

6. OBLIGATIONS OF THE SERVICE PROVIDER (DATA PROCESSOR)

The Service Provider shall:

- (a) Process member data only on documented instructions from the Business.
- (b) Ensure that personnel authorized to access member data are bound by confidentiality.
- (c) Implement appropriate technical and organisational measures (Section 7).
- (d) Not engage sub-processors without disclosure (current sub-processors listed in Schedule A).
- (e) Assist the Business in responding to member rights requests within 7 days.
- (f) Notify the Business of any data breach within **72 hours** of becoming aware.
- (g) Delete or return all member data within 30 days of Agreement termination, on request.
- (h) Make available to the Business all information necessary to demonstrate compliance.
- (i) Maintain the privacy-first architecture: member phones masked, admin shows counts only.

7. TECHNICAL AND ORGANISATIONAL SECURITY MEASURES

Measure	Implementation
Encryption in Transit	TLS 1.2+ for all API calls and message delivery
Encryption at Rest	AES-256 encryption on Supabase PostgreSQL (Mumbai region)
Member Phone Masking	Hashed/masked in admin views; founder cannot see plaintext
Access Control	Role-based access; MFA enforced on admin accounts
Audit Logging	All admin actions logged with timestamps and user ID
Backup	Encrypted daily backups, 90-day retention
Incident Response	72-hour breach notification, documented escalation
Data Minimisation	Only essential fields collected; voice/image data not stored

8. SUB-PROCESSORS (SCHEDULE A)

The Business consents to the Service Provider's use of the following sub-processors:

Sub-Processor	Purpose	Data Shared	Location
Meta Platforms Inc. (WhatsApp)	Message delivery	Phone, message content	India / USA
Supabase Inc.	Database hosting	All account data (encrypted)	Mumbai, India
Render Inc.	Application hosting	Backend processing (transient)	USA
Upstash Inc.	Queue management	Reminder IDs, timestamps	USA
OpenAI Inc.	AI text/voice processing	Reminder text (not retained)	USA
Razorpay Software Pvt Ltd	Payment processing	Phone, payment amount	India
Vercel Inc.	Frontend hosting	Public site only	USA

The Service Provider will notify the Business 30 days before adding new sub-processors. The Business may object within 14 days; if unresolved, either party may terminate.

9. DATA BREACH NOTIFICATION

In case of a personal data breach affecting Business members:

- (a) Service Provider shall notify Business within **72 hours** of discovery.
- (b) Notification shall include: nature of breach, categories and approximate number of affected data subjects, likely consequences, and mitigation measures.
- (c) Both parties shall cooperate in notifying the Data Protection Board of India (DPB) and affected members.
- (d) Costs of notification shall be borne by the party responsible for the breach.

10. TERMINATION & DATA RETURN

10.1 Either party may terminate this Agreement with 30 days written notice.

10.2 Upon termination, the Service Provider shall:

- (a) Export Business's member data in CSV format within 7 days, on request;
- (b) Permanently delete all member data within 30 days;
- (c) Provide a Certificate of Destruction upon completion;
- (d) Continue to honor confidentiality obligations indefinitely.

10.3 Backup copies may persist for up to 90 days in encrypted form before automatic deletion.

11. LIABILITY AND INDEMNIFICATION

11.1 Each party is liable for damages caused by its own breach of this Agreement.

11.2 The Service Provider's total liability under this Agreement is capped at the total fees paid by the Business in the 3 months preceding the claim.

11.3 The Business shall indemnify the Service Provider against claims arising from:

- (a) Lack of valid consent from members;
- (b) Inaccurate or unlawful data uploaded by Business;
- (c) Spam complaints or regulatory actions due to Business's content.

11.4 Neither party is liable for indirect, consequential, or incidental damages.

12. CONFIDENTIALITY

Both parties agree to keep confidential all non-public information shared under this Agreement, including member data, business processes, pricing, and technical details. This obligation survives termination for 3 years.

13. GOVERNING LAW AND JURISDICTION

This Agreement is governed by the laws of **India**, and the state of **Madhya Pradesh**. Disputes shall be subject to the exclusive jurisdiction of the courts at **Indore, Madhya Pradesh, India**. For disputes under **₹5,00,000**, parties agree to first attempt mediation before litigation.

14. MISCELLANEOUS

14.1 Entire Agreement: This DPA, together with the Terms of Service and Privacy Policy (both available at remindmeindia.site), constitutes the entire agreement between the parties.

14.2 Amendments: Any modification must be in writing and signed by both parties (for formal version) or notified 30 days in advance for auto-accepted version.

14.3 Severability: If any provision is invalid, the rest remains in full force.

14.4 Notices: Legal notices to hello.remindmeindia@gmail.com (subject "DPA OFFICIAL NOTICE") or Owner WhatsApp +91 74705 78178.

14.5 Electronic Validity: This Agreement is valid in both signed paper form and electronically accepted form (via Terms of Service auto-acceptance), per Indian Contract Act 1872 and IT Act 2000 Section 10A.

15. SIGNATURES

By signing below, both parties acknowledge they have read, understood, and agree to the terms of this Data Processing Agreement.

FOR THE BUSINESS (Data Fiduciary)

FOR REMINDME INDIA (Data Processor)

Signature

Signature

Name: _____

Name: Ayush Malviya

Title: _____

Title: Founder & Grievance Officer

Date: ____ / ____ / ____

Date: ____ / ____ / ____

Business Stamp/Seal:

Service Provider Stamp:

RemindMe India — Empowering Indian Businesses with Automated WhatsApp Reminders

Made with care in Indore, India ■ | Legal: hello.remindmeindia@gmail.com | Service: +91 62699 15175

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